IN THE HIGH COURT FOR THE STATE OF TELANGANA AT HYDERABAD

WEDNESDAY, THE FOURTEENTH DAY OF OCTOBER TWO THOUSAND AND TWENTY SIX

PRESENT

THE HONOURABLE THE ACTING CHIEF JUSTICE P.SAM KOSHY AND THE HONOURABLE SRI JUSTICE SUDDALA CHALAPATHI RAO

WRIT APPEAL NO: 1083 OF 2026

Writ Appeal under clause 15 of the Letters Patent Appeal Preferred Against the Order dated. 22-09-2026 Passed in WP No. 30609 of 2026 on the file of the High Court.

Between:

Milk Producers Mutually Aided Co-operative Society Mallapur,
Registered Office. Mallapur Village, Yadagirigutta Mandal - 508115, Yadadri-Bhuvanagiri District, Telangana,
Represented by its President/Chairman, OGGU BISKHAPATHI, S/o. Beerappa, Aged 76 years, R/o. Mallapur Village, Yadagirigutta Mandal - 508115, Yadadri-Bhuvanagiri District, Telangana.

...APPELLANT/WRIT PETITIONER

AND

1. The State of Telangana, Represented by its Principal Secretary, Department for Agriculture and Co-operation, Secretariat, Hyderabad - 500001.
2. The District Co-Operative Officer, Integrated District Offices Complex, Raigir (Vill.), Bhongir (M), Yadadri-Bhuvanagiri District - 508116.
3. Nalgonda-Ranga Reddy Milk Producers Mutually Aided Co-op. Union Ltd (NARMUL), Registered Office at Unit-1, Mother Dairy Plant, Kuntloor (Vill), Hayatnagar Mandal, Ranga Reddy District - 501505.

...RESPONDENTS

I.A. NO: 2 OF 2026

Petition under Section 151 CPC praying that in the circumstances stated in the affidavit filed in support of the petition, the High Court may be pleased to direct Respondent Nos.2 and 3 to immediately acknowledge our annual compliance reports under Section 34 and further direct Respondent No.3 to permit the Appellant Society's authorized representative to participate, cast their vote, and exercise their full democratic franchise in the election schedule for 28.09.2026, pending disposal of the main writ appeal.

Counsel for the Appellant: SRI. U SHANTHI BHUSHAN RAO

Counsel for the Respondent Nos.1 and 2: MS. B. MOHAN REDDY, AGP FOR COOPERATION

The Court Delivered the following: JUDGMENT ORDER

IN THE HIGH COURT FOR THE STATE OF TELANGANA

AT HYDERABAD

THE HON'BLE THE ACTING CHIEF JUSTICE P.SAM KOSHY

AND

THE HON'BLE SRI JUSTICE SUDDALA CHALAPATHI RAO

WRIT APPEAL No.1083 of 2026

(CNR No.HBHC010662622026)

Dated:14.10.2026

Between:

Milk Producers Mutually Aided Co-operative Society Mallapur

...Appellant

and

The State of Telangana,
Represented by its Principal Secretary,
Department for Agriculture and Cooperation,
Secretariat, Hyderabad – 500 001,
and 2 others.

...Respondents

JUDGMENT: *(Per the Hon'ble the Acting Chief Justice P.Sam Koshy)*

Learned counsel Sri U.Shanthi Bhushan Rao appears for the appellant.

Ms. B.Mohana Reddy, learned Government Pleader for Cooperation Department, appears for respondents No.1 and 2.

2. The present appeal has been filed aggrieved by the order of the learned Single Bench dated 22.09.2026 passed in W.P.No.30609 of 2026.

3. By the impugned order, the learned Single Bench, at the request of the learned Government Pleader for Cooperation Department, adjourned the writ petition from 22.09.2026 to 17.11.2026.

4. The appellant, who is the writ petitioner, is citing that in the event if the writ petition is not taken up on an early date, substantial prejudice would be caused to the interests of the appellant.

5. The ground of the appellant is one which needs to be only appreciated by the Bench hearing the writ petition i.e., the learned Single Bench. If at all the appellant feels that 17.11.2026 is a long date granted, the appropriate remedy for the appellant is to approach the very same Single Bench and show the urgency, which the learned Single Bench may consider and decide on its own merits.

6. With the aforesaid observations, the appeal stands disposed of. There shall be no order as to costs.

Miscellaneous applications pending, if any, shall stand closed.

SD/-MOHD.ISMAIL
DEPUTY REGISTRAR

//TRUE COPY//

SECTION OFFICER

To,

1. The Principal Secretary, The State of Telangana, Department for Agriculture and Co-operation, Secretariat, Hyderabad - 500001.
2. The District Co-Operative Officer, Integrated District Offices Complex, Raigir (Vill.), Bhongir (M). Yadadri-Bhuvanagiri District - 508116.
3. Nalgonda-Ranga Reddy Milk Producers Mutually Aided Co-op. Union Ltd (NARMUL). Registered Office at Unit-1, Mother Dairy Plant, Kuntloor (Vill), Hayatnagar Mandal, Ranga Reddy District - 501505.

4. One CC to Sri U. Shanthi Bhushan Rao, Advocate [OPUC]
5. Two CCs to GP for Cooperation, High Court for the State of Telangana, at Hyderabad [OUT]
6. Two CD Copies

TJ
PB



HIGH COURT

DATED: 14/10/2026

JUDGMENT

WA.No.1083 of 2026



DISPOSING OF THE WRIT APPEAL

WITHOUT COSTS

LD
Y.VG
24/10/26